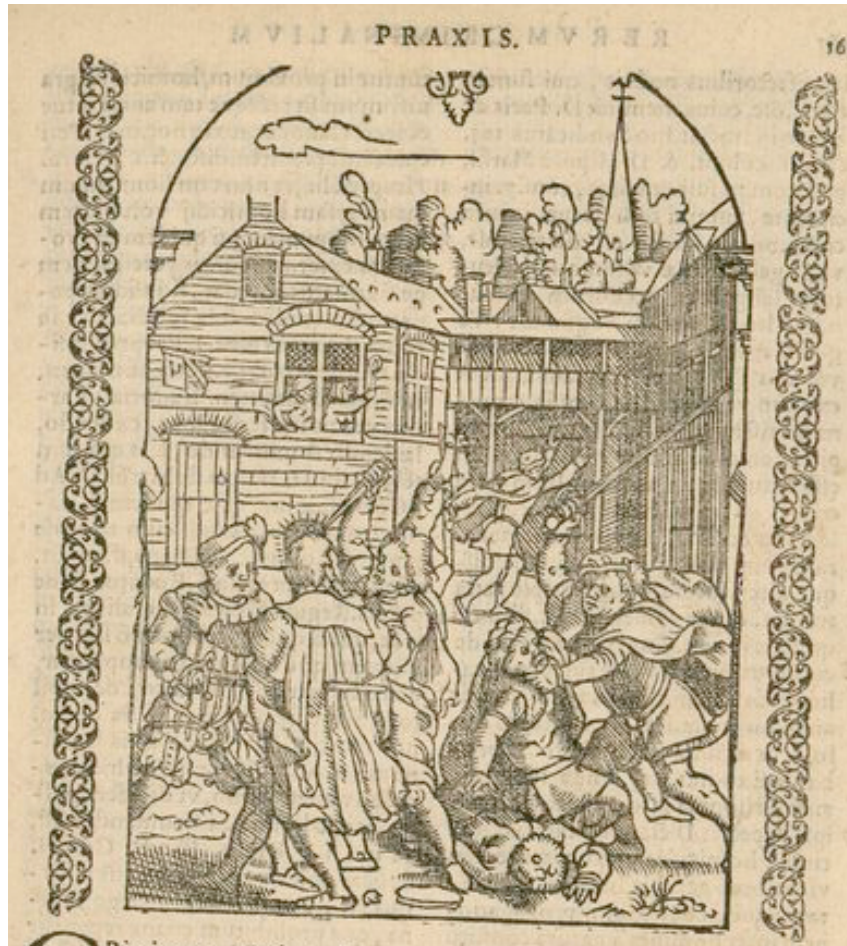


EARLY MODERN WORKSHOP: Jewish History Resources

Volume 10: Jews and Violence in the Early Modern Period



Jodocus Damhouder, *Praxis Rerum Criminalium*, 1562, p. 167

University of Maryland, College Park, MD, August, 18-20, 2013

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Violence at a Purim Ball

Francesca Bregoli, Queens College of the City University of New York

Archivio di Stato di Livorno, serie Governatore e Auditore
Filza 3104, 642r-v, 684r

Il 21 marzo 1753 Francesco Masi luogotenente del Bargello di Livorno querelò Angelo Soria, David Montefiore, e Abram Soria, tutti di Nazione Ebreo, la sera del 20 marzo trovandosi alla veglia di ballo che faceva in sua casa Elia Ottolenghi di Nazione parimenti Ebreo, ed essendo ivi venuti a contesa di parole e poi alle Mani con Abram Pardo da uno dei suddetti tre fosse dato di mano in tal atto a uno stile di qualità proibita, benché non vi seguissero offese colla medesima arme.

Per porre in chiaro quanto proponeva il querelante nella delazione, e uso dell'arme proibita, fu proceduto all'esame non solo di quei testimoni che nominati aveva il querelante istesso, ma degli altri ancora che nel corso del processo erano stati creduti informati.

Il primo testimone, che è Jacob de Costa, ricercato della qualità dell'arme così dice: Ivi "In quella barabasta [?] io osservai che Angiolo Soria aveva impugnato in mano un coltello, di che qualità poi si fosse non so dirglielo." E più sotto ivi: "Certo che sarà stata un arme [sic] proibita perché se non fosse stato capace d'offendere non l'avrebbe portato, ma descriverlo per l'appunto non so certamente farlo." E più sotto ivi: "Ma non troverà alcuno che gli dica come precisamente fosse detta arme, perché fu troppo grande la confusione".

Jacob Attias, secondo testimone così dice rispetto all'arme, ivi: "Io veddi per aria lampeggiare e luccicare un ferro" e più sotto ivi: "Io come gli dico in occasione che veddi il tumulto, e me n'andai ritirandomi in altra stanza, osservai per aria luccicare come un arme, ma come fosse, o non fosse non lo so."

Abram Frias, terzo testimone così dice rispetto all'arme, ivi: "Io posso dirgli che poco avanti che giungesse il soldato, avevo veduto quella maschera che disse esser David Montefiore che messasi [642v] la mano in tasca tirò fuori un arme, ma appena si poté vedere che arme si fosse, benché io vedessi luccicare, né si poté vedere che arme fosse o non fosse quella che aveva impugnato il medesimo" E più

sotto ivi: “Potrebbe essere che fosse stato uno stile perché quella sorte di gente non porta coltelli, ma torno a replicargli che la qualità precisa di detta arme non glie la posso dire.” E più sotto ivi: “L’arme fu messa fuori e se sapessi di che qualità fosse glie lo direi.”

Abram Pardo Roques, che è l’offeso e insultato per rapporto all’arme così dice ivi: “Ed essendomi ancora provato ad ammenare al medesimo un pugno, allora fù [sic] che veddi rilucere in mano del medesimo un arme.” E più sotto: “Appena io veddi che messa fuori l’arme che subito la ripose, né si poté veder cosa fosse, cioè che arme fosse e come fosse.”

Abram Zancò, quarto che era il Maestro di ballo, Pincas Erera quinto, Lazzerò Levi sesto, Alessandro Ottolenghi settimo testimoni [sic], sebben strettamente ricercati sopra l’arme asseriscono di non averla veduta

Abram Rodrigues, ottavo testimone sul proposito dell’arme così dice ivi: “Volendosi detto Pardo difendere, veddi che quella maschera che gli aveva ammenato lo schiaffo tirò mano a un coltello col quale non poté operar cosa alcuna.” E più sotto: “Era un coltello lustrante per quanto permettevano i lumi che si vedesse, e era un coltello che aveva la lama lunga otto o dieci dita, e secondo me pareva che fosse un coltello alla fiaminga, ma non ci fù tempo di considerarlo bene perché venne subito il soldato, e cominciò a dare.” E più sotto ivi: “Il Coltello non lo ho preso in mano, e secondo me dico che fosse un coltello alla Fiaminga certo appuntato, e nuovo, perché era lustrante e come dico non ci fù tempo d’osservarlo bene.”

Il 9°, 10° e 13° testimoni che si trovarono sul fatto, i primi due de’ quali sono Cristiani, attestano di non aver veduta l’arme, tralasciandosi l’11° e 12° [testimoni] perche anno de[684r]posto d’altre circostanze niente relative all’arme.

Tanto fedelmente rilevasi dagli atti, sicché non parendomi che vi sieno prove sufficienti per creder reo alcuno dei tre querelati della delazione dell’arme proibita terrei rispetto a questo caso il processo aperto usq. ad nova, e perché Abram Pardo insultato faceva istanza nel suo esame procedersi contro Abram Soria per lo schiaffo che egli aveva ammenato, giacché il Padre del medesimo ne ha fatto renunzia che è in processo non procederei più oltre. Rimettendomi sempre alle più giuste determinazioni di V.M.C. alla quale rassegnandomi con profondo rispetto m’inchino al bacio dell’imperial manto

Livorno, 25 aprile 1753; approvato il 5 maggio 1753
Carlo Ginori

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On March 21, 1753 Francesco Masi, lieutenant of the Livornese Bargello [police] brought a suit against Angelo Soria, David Montefiore and Abram Soria, all members of the *Nazione Ebreica*, who on March 20 were attending the ball organized by Elia Ottolenghi (also a member of the *Nazione Ebreica*) in his home, and since they had started exchanging verbal offenses, and then came to blows, with Abram Pardo there, one of the above mentioned extracted a stiletto of a prohibited type during such act, although no physical harm was inflicted with this weapon.

To clarify what the plaintiff expounded in his accusation, and the use of the prohibited weapon, not only were those witnesses named by the plaintiff examined, but also some other ones who during the trial were believed to have information about the event.

The first witness, who is Jacob da Costa, when queried about the type of the weapon says thus, here [i.e., copying verbatim from the interrogation]: “In that commotion [?] I observed that Angiolo Soria was holding a knife in his hand, but I am unable to tell you which kind it was.” And further down here: “It certainly must have been a prohibited weapon, because he would not have brought it with him if it were harmless, but I am not at all able to describe it precisely.” And further down here: “But you will not find anybody who can tell you what this weapon was precisely, because the confusion was too great.”

Jacob Attias, second witness, says thus regarding the weapon, here: “I saw that a blade flashed and glimmered in the air,” and further down here: “As I am saying, as soon as I saw the commotion and withdrew to another room, I noticed the glimmer of a sort of weapon in the air, but how it was or wasn’t, I do not know.”

Abram Frias, third witness, says thus about the weapon, here: “I can tell you that a little before the soldier came, I had seen that mask [masked guest], who said he was David Montefiore, put his hand [642v] in his pocket and take out a weapon, but it was barely possible to see which kind of weapon, although I saw it glimmer, and it was impossible to see which weapon was or wasn’t the one that this person was holding.” And further down here: “It could have been a stiletto because that sort of people do not carry knives, but I am repeating to you again that I am unable to tell you the precise type of that weapon.” And further down here: “The weapon was extracted, and if I knew of which type of it was, I would tell you.”

Abram Pardo Roques, who is the offended and insulted as far as the weapon is concerned, says thus here: “It was when I tried to punch him that I saw a weapon glimmer in his hand.” And further down: “As soon as I saw the weapon, he put it away, and it was not possible to see what it was, namely which weapon it was and how it was.”

Abram Zancò, fourth, who was the dancing master, Pincas Errera fifth, Lazzero Levi sixth, Alessandro Ottolenghi seventh witness, although closely queried regarding the weapon, assert that they did not see it.

Abram Rodrigues, eighth witness, says thus about the weapon, here: “Since said Pardo wanted to defend himself, I saw that that mask who had slapped him extracted a knife with which, however, he was not able to carry out any action.” And further down: “It was a glimmering knife, as far as could be seen because of the [dim] lights, and it was a knife with an eight- or ten-finger-long blade, and I think that it looked like a Flemish-type knife, but there was no time to observe it carefully, since the soldier arrived immediately and started hitting [?].” And further down here: “I did not take the knife in my hand, and I am saying that I think it was a Flemish-type knife, certainly sharp and new, because it was glimmering, and as I say there was no time to observe it well.”

The ninth, tenth and thirteenth witnesses who were present at the event, the first two of whom are Christian, attest that they did not see the weapon. We are excluding the eleventh and twelfth witnesses because they testified [684r] about other circumstances irrelevant to the weapon.

Such is accurately reported from the documents, therefore since it does not seem to me that there is sufficient evidence to believe that any of the three

individuals denounced in the accusation regarding the prohibited weapon are guilty, concerning this case I would keep the trial open until new evidence is brought forward. And as far as the offended Abram Pardo, who requested in his examination to proceed against Abram Soria for the slap [Soria] gave him, since [Pardo's] father withdrew the complaint that is part of the trial, I would not pursue it any further. I am ever deferring to the most just determinations of Your Cesarean Majesty, in front of whom, with profound submission and respect, I bow to kiss the imperial mantle,
Carlo Ginori.

Livorno, April 25, 1753
Approved on May 5.

[Purim fell on March 19-20 in 1753]